

[1] PLAINTIFF’S MOTION TO COMPEL FURTHER RESPONSES TO PLAINTIFF’S SPECIAL INTERROGATORIES, SET THREE AND REQUEST FOR SANCTIONS

TENTATIVE RULING: The motion is GRANTED. Within 21 days of Notice of Entry of Order, Defendant shall (1) serve further verified, substantive responses, without objection, to the Subject Discovery, and (2) pay to Pearce, care of his attorney of record, sanctions in the amount of \$2,025. Pearce is directed to provide Notice of Entry of Order.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL MATTERS

Plaintiff Jarred Pearce (“Pearce”) moves, pursuant to Code of Civil Procedure sections 2017.010, 2023.010, 2023.030, and 2031.310,¹ for an order compelling Defendant Modern Cooperage USA LLC (“Defendant”) to serve further verified responses to Pearce’s Special Interrogatories, Set Three, Nos. 44-58 (collectively, “Subject Discovery”). Pearce further seeks monetary sanctions against Defendant and its counsel of record, DLA Piper LLP (US), jointly and severally, in the amount of \$3,850.00. The Motion is brought on the grounds that Defendant’s objection-only responses are deficient because Defendant asserted boilerplate objections and has refused to provide substantive responses.

While neither Pearce’s Notice of Motion nor Memorandum cite to the applicable authority for compelling further responses to *interrogatories*, instead only citing to section 2031.310, Defendant waives that procedural defect by failing to raise an objection to it and filing a substantive opposition to the merits of the Motion.

Defendant spends considerable time discussing how Pearce’s anticipated First Amended Complaint to add BIT365, Inc. as a defendant will “obviate” and render “moot” “much of” the present motion. (See Opp., 2:22-3:2, 3:19-4:9, fn. 1; see also Declaration of Elias Parisca (“Parisca Decl.”), ¶¶ 4-9.) Defendant does not articulate in what way the motion will be rendered moot by the addition of that defendant. The Court draws a reasonable inference that, if BIT365 is added as a defendant, Defendant’s objection on relevance grounds will be removed. This inference is reasonably drawn from Defendant’s emphasis in Opposition on the point that

¹ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

BIT365 is a non-party entity and therefore its confidential information has no bearing on the claims in the operative complaint.

As further discussed below, the Court finds the Subject Discovery relevant to the operative complaint and issues discovered thus far in the case. As such, it was not unreasonable for Pearce to refuse Defendant's request to withdraw or continue the present motions until the First Amended Complaint is filed.

B. LEGAL STANDARD

On receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems an objection to an interrogatory is without merit or too general. (§ 2030.300, subd. (a)(3).)

If a timely motion to compel is filed, the propounding party has the burden of filing a motion to compel if it finds the answers it receives unsatisfactory, but "the burden of justifying any objection and failure to respond remains at all times with the party resisting an interrogatory." (*Coy v. Superior Court* (1962) 58 Cal.2d 210, 220-21.) To show an interrogatory seeks relevant, discoverable information "is not the burden of [the party propounding interrogatories]. As a litigant, it is entitled to demand answers to its interrogatories, as a matter of right, and without a prior showing, unless the party on whom those interrogatories are served objects and shows cause why the questions are not within the purview of the code section." (*West Pico Furniture Co. v. Superior Court* (1961) 56 Cal.2d 407, 422.)

C. DISCUSSION

Despite that burden-shifting scheme, Pearce's moving papers sufficiently explain the relevance of the Special Interrogatories to the case. Namely, Pearce alleges that Defendant failed to pay him all wages earned during his employment, including wages owed at the time of his termination. (Compl., ¶¶ 56-60.) Plaintiff contends that Defendant induced him to continue working without pay by representing that he would receive a significant ownership interest as part of his compensation package. (Declaration of Caitlin E. Macker ("Macker Decl.") ¶ 5, Ex. 2.) Despite those representations, Plaintiff was ultimately granted 280,000 shares of stock in BIT365, Inc., which Defendant's counsel has later represented in this action is Defendant's parent company and sole owner. (*Id.*, ¶¶ 5, 8, Ex. 2.) Plaintiff contends that the stock did not provide the value Defendant represented it would provide and did not compensate Plaintiff for the wages he earned but was never paid. (*Ibid.*) Plaintiff also alleges that Defendant unlawfully terminated him after he exercised his right to take job-protected paternity leave. (Compl., ¶¶ 27-54.) Defendant's stated justification for terminating Plaintiff's employment was that Defendant lacked sufficient funding to continue employing him. (Macker Decl., ¶ 9, Ex. 5.)

The Special Interrogatories at issue seek information regarding: (1) the value of the stock issued to Pearce (Nos. 45-49); (2) the basis for that valuation (Nos. 45-49); (3) Defendant's decision to provide Plaintiff this compensation and the individuals involved in that decision (Nos. 44, 57-58); (4) Defendant's relationship with BIT365 (No. 56); and (5) the financial condition and capitalization of the entities involved (Nos. 50-55).

In Opposition, Defendant elected not to file a responsive separate statement. Rather, Defendant argues in support of its objections to the Subject Discovery, as a whole.

Defendant argues that its objections correctly identified the Subject Discovery as: (1) not relevant and not reasonably calculated to lead to the discovery of admissible evidence because no pled claim implicates the information sought; (2) vague, ambiguous, overbroad, and unduly burdensome given the absence of any nexus to the operative claims and the lack of any time or scope limitation; (3) seeking trade secret, confidential, and proprietary financial information of a non-party; and (4) implicate the protected privacy interests of BIT365 and its investors.

The first two categories of objections are based on the absence of a nexus between the Subject Discovery and the allegations pled in the operative Complaint. However, this ignores the relevance of the Subject Discovery to Pearce's claims as further described in Pearce's verified response to Defendant's Special Interrogatories and Defendant's express reason for terminating his employment, both of which Pearce raised and discussed in his moving papers. (Macker Decl., ¶¶ 5, 9, Exs. 2, 5.) "Relevancy to the subject matter of the litigation is a much broader concept than relevancy to the precise issues presented by the pleadings. [Citation.] 'The 'subject matter of the action' is the circumstances and facts out of which the cause of action arises; it is the property, contract, or other thing involved in the dispute; it is not the act or acts which constitute the cause of action, but describes physical facts in relation to which the suit is prosecuted.' [Citation.]" (*Norton v. Superior Court* (1994) 24 Cal.App.4th 1750, 1760.)

Defendant's only acknowledgement of Pearce's representation of the factual bases to which the Discovery Requests are relevant is Defendant's assertion that its defense of insufficient funding does not open the door to BIT365's records because the defense is specifically that Defendant's lacked "operational funding—its ability to sustain payroll for Plaintiff's position at the time of separation," which "does not open the door to the internal corporate structure, capitalization, valuation, investor identity and communications, or complete financial records of a separate parent entity." (Opp., 8:26-9:4.) Not only is this response cursory, Defendant does not cite to a pleading or other document which specifies "operational funding" as the reason for termination, nor does the Court necessarily agree that a defense of insufficient *operational* funding somehow limits discovery to a company's financial records.

Based on the foregoing, Defendant has failed to justify its first two categories of objections.

With respect to the third and fourth categories of objections, Defendant fails to satisfy its burden. "In *Hill*, we established a framework for evaluation potential invasions of privacy. The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations." (*Williams v. Super. Ct.* (2017) 3 Cal.5th 531, 552.)

Defendant fails to discuss an objectively reasonable expectation of privacy in the given circumstances (i.e., Defendant's alleged reason for terminating Plaintiff's employment being insufficient funds, Defendant representing that BIT365 is its parent company, Defendant allegedly compensating Plaintiff through BIT365 stocks with assurances it provided meaningful compensation, etc.) or a threatened intrusion that is serious, as Defendant fails to rebut, much less acknowledge, Pearce's contention that the parties' current protective order is sufficient to protect privacy interests while producing responsive documents.

The Court notes that another category of objections addressed by Pearce, but not addressed by Defendant, is the claim of attorney client privilege and work product doctrine. The Court finds that Defendant has failed to justify those objections. Not only does Defendant fail to meaningfully address them in Opposition, Defendant's responses to the Subject Discovery do not provide sufficient factual information for other parties or the Court to evaluate the merits of that claim, nor does the Court believe that Special Interrogatories, seeking underlying facts, necessarily invoke those privileges.

For all the foregoing reasons, the Motion is GRANTED. Within 21 days of Notice of Entry of Order, Defendant shall serve further verified, substantive responses, without objection, to the Subject Discovery.

Pearce's request for sanctions, pursuant to section 2030.300, subdivision (d) is GRANTED IN PART. "[T]he court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully ... opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (§ 2030.300, subd. (d).) The Court finds neither that Defendant acted with substantial justification nor that other circumstances make imposition of sanctions unjust. The Court does not find that the hourly rate charged by counsel is reasonable within the customary range charged in the Napa community. (See Macker Decl. at ¶ 10.) The Court reduces the hourly rate to \$450. The Court finds that 4.5 hours is a reasonable number of billable hours for preparation of the motion. (*Id.*, ¶ 11) The Court does not, however, grant sanctions for estimated future fees. (See *ibid.*)

Based on the foregoing, Defendant is ordered to pay to Pearce, care of his attorney of record, within 21 calendar days of notice of entry of this order, sanctions in the amount of (4.5 hrs x \$450/hr) = \$2,025.

[2] PLAINTIFF'S MOTION TO COMPEL FURTHER RESPONSES TO PLAINTIFF'S REQUESTS FOR IDENTIFICATION AND PRODUCTION OF DOCUMENTS, SET THREE AND REQUEST FOR SANCTIONS

TENTATIVE RULING: The motion is GRANTED. Within 21 days of Notice of Entry of Order, Defendant shall (1) serve further verified responses to the Subject Discovery and produce all responsive documents in accordance with this ruling, and (2) pay to Pearce, care of

his attorney of record, sanctions in the amount of \$2,925. To the extent Defendant feels the need to maintain any of its privilege objections, the further responses shall provide sufficient factual information for other parties to evaluate the merits of that claim, including, if necessary, a privilege log. Pearce is directed to provide Notice of Entry of Order.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff Jarred Pearce ("Pearce") moves, pursuant to Code of Civil Procedure sections 2017.010, 2023.010, 2023.030, and 2031.310,² for an order compelling Defendant Modern Cooperage USA LLC ("Defendant") to serve further verified responses to Pearce's Requests for Identification and Production of Documents ("Requests"), Set Three, Nos. 43-67 (collectively, "Subject Discovery"), and to produce all responsive documents. Pearce further seeks monetary sanctions against Defendant and its counsel of record, DLA Piper LLP (US), jointly and severally, in the amount of \$4,950.00. The Motion is brought on the grounds that Defendant's objection-only responses to the Subject Discovery are deficient because Defendant asserted boilerplate objections, failed to provide substantive responses, and refused to produce responsive documents.

On receipt of a response to a document demand, the demanding party may move for an order compelling further response to the demand if the demanding party deems that any of the following apply: (1) a statement of compliance with the demand is incomplete, (2) a representation of inability to comply is inadequate, incomplete, or evasive, or (3) an objection in the response is without merit or too general. (§ 2031.310, subd. (a).)

A party moving to compel responses to production of documents must "set forth specific facts showing good cause justifying the discovery sought by the demand." (§ 2031.310, subd. (b)(1).) "[A]bsent a claim of privilege or attorney work product, the party who seeks to compel production has met his burden of showing good cause simply by a fact-specific showing of relevance." (*Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.) "In the context of discovery, evidence is 'relevant' if it might reasonably assist a party in evaluating its case, preparing for trial, or facilitating a settlement." (*Glenfed Development Corp. v. Superior Court* (1997) 53 Cal.App.4th 1113, 1117.) Once good cause is shown, the burden shifts to the party opposing the motion to justify its objection(s). (See *Kirkland*, *supra*, 95 Cal.App.4th at 98.)

Pearce argues that the Requests relate to two central issues in the case. First, Pearce alleges that Defendant induced him to continue working for months without wages by promising meaningful equity compensation. (See Compl., ¶¶ 56-60; Declaration of Caitlin E. Macker ("Macker Decl.") ¶ 5, Ex. 2, 2:5-14.) Defendant ultimately granted Pearce 280,000 shares of stock in a separate entity, BIT365, Inc., which Defendant's counsel has later represented in this

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case is Defendant's parent company and sole owner. (Macker Decl., ¶ 5, Ex. 2, 2:15-16, ¶ 8.) Pearce seeks documents concerning the value of that stock (Nos. 55-61), the basis for Defendant's valuation and representations regarding it (Nos. 43-47, 55-61), and the relationship between Defendant and BIT365 (Nos. 48-54, 59-63, 66-67). Pearce argues those documents go directly to Pearce's wage claims and damages.

Second, Defendant's stated reason for terminating Pearce's employment was because it lacked sufficient funds or means of generating income to support his salary. (Compl., ¶¶ 27-54; Macker Decl., ¶ 9, Ex. 5.) Pearce seeks documents concerning Defendant's capitalization, financing activities, and investor communications (Nos. 43-47, 62, 64-65), and ownership structure and relationship with BIT365 (Nos. 43-54, 62-67). Pearce contends these documents are directly relevant to Defendant's stated justification for Pearce's termination and to Pearce's alter ego allegations.

Based on the foregoing, the Court finds that Pearce has met his burden to show good cause for the Subject Discovery.

In Opposition, Defendant elected not to file a responsive separate statement. Rather, Defendant argues in support of its objections to the Subject Discovery, as a whole.

Defendant contends its objections asserted to the Subject Discovery are substantively justified because the Subject Discovery: (1) seeks documents which are not relevant and not reasonably calculated to lead to the discovery of admissible evidence because no pled claim implicates the information sought; (2) is vague, ambiguous, overbroad, and unduly burdensome given the absence of any nexus to the operative claims and the lack of any time or scope limitation; (3) seeks trade secret, confidential, and proprietary financial information of a non-party; (4) implicates the protected privacy interests of BIT365 and its investors; and (5) reaches privilege communications given the multiple requests for "all communications," without any limitation. (Opp., 9:9-15.)

The first two categories are based on the absence of a nexus between the Subject Discovery and the allegations pled in the operative Complaint. However, this ignores the relevance of the Subject Discovery to Pearce's claims as further described in Pearce's verified response to Defendant's Special Interrogatories and Defendant's express reason for terminating his employment, both of which Pearce raised and discussed in his moving papers. (Macker Decl., ¶¶ 5, 9, Exs. 2, 5.) "Relevancy to the subject matter of the litigation is a much broader concept than relevancy to the precise issues presented by the pleadings. [Citation.] 'The 'subject matter of the action' is the circumstances and facts out of which the cause of action arises; it is the property, contract, or other thing involved in the dispute; it is not the act or acts which constitute the cause of action, but describes physical facts in relation to which the suit is prosecuted.' [Citation.]" (*Norton v. Superior Court* (1994) 24 Cal.App.4th 1750, 1760.)

Defendant's only acknowledgement of Pearce's representation of the factual bases to which the Subject Discovery are relevant is Defendant's assertion that its defense of insufficient funding does not open the door to BIT365's records because the defense is specifically that Defendant's lacked "operational funding—its ability to sustain payroll for Plaintiff's position at

the time of separation,” which “does not open the door to the internal corporate structure, capitalization, valuation, investor identity and communications, or complete financial records of a separate parent entity.” (Opp., 8:26-9:4.) Not only is this response cursory, Defendant does not cite to a pleading or other document which specifies “operational funding” as the reason for termination, nor does the Court necessarily agree that a defense of insufficient *operational* funding somehow limits discovery to a company’s financial records.

Based on the foregoing, Defendant has failed to justify its first two categories of objections.

With respect to the third and fourth categories, Defendant fails to satisfy its burden. “In *Hill*, we established a framework for evaluation potential invasions of privacy. The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations.” (*Williams v. Super. Ct.* (2017) 3 Cal.5th 531, 552.) Defendant fails to discuss an objectively reasonable expectation of privacy in the given circumstances (i.e., Defendant’s alleged reason for terminating Plaintiff’s employment being insufficient funds, Defendant representing that BIT365 is its parent company, Defendant allegedly compensating Plaintiff through BIT365 stocks with assurances it provided meaningful compensation, etc.) or a threatened intrusion that is serious, as Defendant fails to rebut, much less acknowledge, Pearce’s contention that the parties’ current protective order is sufficient to protect privacy interests while producing responsive documents.

With respect to the fifth category, Defendant fails to provide sufficient factual information for other parties or the Court to evaluate the merits of that claim. (§ 2031.240, subd. (c)(1).) In providing further responses to the Subject Discovery, should Defendant feel the need to maintain its privilege objections, Defendant shall produce a privilege log simultaneously with its further responses. (§ 2031.240, subds. (c)(1)-(2).)

For all the foregoing reasons, the Motion is GRANTED. Within 21 days of Notice of Entry of Order, Defendant shall serve further verified responses to the Subject Discovery and produce all responsive documents.

Pearce’s request for sanctions pursuant to section 2031.310, subdivision (h) is GRANTED IN PART. “[T]he court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully ... opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (§ 2031.310, subd. (h).) The Court finds neither that Defendant acted with substantial justification nor that other circumstances make imposition of sanctions unjust. The Court does not find that the hourly rate charged by counsel is reasonable within the customary range charged in the Napa community. (See Macker Decl. at ¶ 10.) The Court reduces the hourly rate to \$450. The Court finds that 6.5

hours is a reasonable number of billable hours for preparation of the motion. (*Id.*, ¶ 11) The Court does not, however, grant sanctions for estimated future fees. (See *ibid.*)

Based on the foregoing, Defendant is ordered to pay to Pearce, care of his attorney of record, within 21 calendar days of notice of entry of this order, sanctions in the amount of (6.5 hrs x \$450/hr) = \$2,925.

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In The Matter of Courtney Alohalani Robinson

26CV001137

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: An Order to Show Cause for Change of Name (OSC) was entered in this matter on May 27, 2026. Petitioner is required to publish the OSC in the manner set forth in Code of Civil Procedure, section 1277. However, there is no proof of publication (POP) in the Court's file. If one is filed before the hearing, the petition will be GRANTED without need for appearance.

If no proof of publication is filed, the matter will be CONTINUED to August 06, 2026, at 8:30 a.m. in Dept. B to provide any publisher time to file the POP.

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In The Matter of Lidia Sigova

26CV001223

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: An Order to Show Cause for Change of Name (OSC) was entered in this matter on June 08, 2026. Petitioner is required to publish the OSC in the manner set forth in Code of Civil Procedure, section 1277. However, there is no proof of publication (POP) in the Court's file. If one is filed before the hearing, the petition will be GRANTED without need for appearance.

If no proof of publication is filed, the matter will be CONTINUED to August 06, 2026, at 8:30 a.m. in Dept. B to provide any publisher time to file the POP.

GUARDIANSHIP CALENDAR – Commissioner Douglas Skelton, Dept. 6 (Criminal Courts Bldg. – 1111 Third St.) at 2:00 p.m.

Braulio Reyes Carreta v. Flor De Maria Carreta De La Cruz

26FL000268

CONFIDENTIAL REQUEST FOR SPECIAL IMMIGRANT JUVENILE FINDINGS [FL-356]

TENTATIVE RULING: The matter is CONTINUED to September 4, 2026, at 2:00 p.m. in Dept. 6 to allow Petitioner to file and serve the Petition to Determine Parental